

25NNCV08715 25NNCV08715

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-08-31

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#17 - TRADEMARK CONSTRUCTION CO., INC. vs WPIC CONSTRUCTION, LLC

CASE MANAGEMENT CONFERENCE

On its own motion, the Case Management Conference is continued to December 7, 2026 at 8:30 a.m. in Department X.

MOTION TO COMPEL ARBITRATION

WPIC's petition to compel Trademark to arbitrate is DENIED.

WPIC's motion to stay this action pending completion of arbitration is DENIED.

The subcontract and its attached General Conditions contain no express arbitration provision. (Wilson Decl., ¶ 5.) Trademark's representative declares that the parties never negotiated, discussed, or agreed to arbitrate disputes with WPIC, that Trademark was not provided the Additions and Deletions Report before execution, and that Trademark never signed the Prime Contract. (Wilson Decl., ¶¶ 6-14.)

In September 2024, Olivewood commenced a JAMS arbitration against WPIC concerning alleged delay, defective work, breach of contract, breach of warranty, and negligence. (Tobar Decl., ¶ 6.) WPIC subsequently named Trademark and other subcontractors as counter-respondents and asserted claims including breach of contract, indemnity, negligence, and declaratory relief concerning a duty to defend. (Tobar Decl., ¶¶ 7-8.)

Trademark did not appear, respond, participate in discovery, seek relief, or otherwise consent to the arbitration. (Opp., pp. 3-4.) A JAMS panel nevertheless determined that the Prime Contract, including its arbitration provision, was incorporated into the subcontract and that Trademark was subject to JAMS jurisdiction. (Tobar Decl., ¶¶ 10-11.)

A. The Court Must Decide Whether Trademark Agreed to Arbitrate

WPIC argues that the Prime Contract's incorporation of JAMS rules delegated arbitrability to the JAMS panel. (Petition, p. 7.) That argument presupposes the very agreement WPIC must establish. Trademark did not sign the Prime Contract containing the JAMS provision and consistently denied consenting to arbitration. The Court therefore must determine whether Trademark became bound through incorporation by reference. The question of whether the parties have submitted a particular dispute to arbitration, i.e., the question of arbitrability, is an issue for judicial determination unless the parties clearly and unmistakably provide otherwise. (*Greenspan v. LADT, LLC* (2010) 185 Cal.App.4th 1413, 1440.) The JAMS panel's prior jurisdictional determination cannot substitute for that judicial determination. (See *Benaroya v. Willis* (2018) 23 Cal.App.5th

462, 473.)

B. WPIC Has Not Established Clear and Unequivocal Incorporation

“For the terms of another document to be incorporated into the document executed by the parties the reference must be clear and unequivocal, the reference must be called to the attention of the other party and he must consent thereto, and the terms of the incorporated document must be known or easily available to the contracting parties.” (Shaw v. Regents of University of California (1997) 58 Cal.App.4th 44, 54.)

Here, the subcontract does not expressly state that the Prime Contract is incorporated into the subcontract. Section VI states only that WPIC executed the subcontract “pursuant to” its contract with Olivewood. That language identifies the origin of WPIC’s authority but does not clearly provide that every term of the Prime Contract governs direct disputes between WPIC and Trademark.

Additionally, Section V does not clearly identify the Prime Contract or its arbitration provision. Its list refers to “General Conditions of the Contract,” while separately identifying the Construction Subcontract Cover Page and numerous attached exhibits. Trademark’s representative signed the subcontract and initialed the attached General Conditions, which contained no arbitration provision.

WPIC’s interpretation is possible, but possibility is insufficient to establish the clear and unequivocal incorporation required for waiver of a judicial forum. The subcontract does not direct Trademark to section 15.4 of the Prime Contract, identify the Additions and Deletions Report containing that provision, mention JAMS, or state that disputes between WPIC and Trademark will be arbitrated.

This situation is similar to the one in Remedial Construction Services (2021) 65 Cal.App.5th 658, where the appellate court found that project performance and flow-down language did not demonstrate a mutual intent to import a prime contract’s separate arbitration agreement into a construction subcontract. (See *id.* at 666 [“if there was an intent to arbitrate claims arising between RECON (the subcontractor-plaintiff) and AECOM (the contractor-defendant), the Subcontract would have so stated The trial court properly found that . . . ‘The Subcontract does not evidence an intention, clear or otherwise, for arbitration of disputes between RECON and AECOM.’ ”].) Accordingly, WPIC has not carried its burden of persuasion. (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 164.)

C. Efficiency and Indemnity Do Not Supply Missing Consent

WPIC contends that, to the extent that there were any delays or defects alleged by Olivewood, WPIC’s subcontractors would be the ones responsible. (Petition, p. 9.) Thus, naming Trademark is necessary to allocate liability for project defects and delays and that separate proceedings risk duplication of effort or inconsistent rulings. (Petition, pp. 10, 15.) Those concerns may be substantial, but concerns cannot create an arbitration agreement.

WPIC’s asserted express defense and indemnity obligations may concern Trademark, but they do not independently establish Trademark’s agreement to arbitrate. (Petition, pp. 14-15.)

D. A Stay Is Not Required

A mandatory stay under Code of Civil Procedure section 1281.4 applies when arbitration has been ordered concerning a controversy involved in the pending action. Because the Court does not order Trademark to arbitrate, that statute does not require a stay of Trademark’s action. The request for a stay is therefore denied.

Unless waived by the parties, the Court is to give notice.